

25STCV38497 25STCV38497

County: los-angeles
Division: Civil Law and Motion
Department: 733
Hearing date: 2026-06-26
Motion: DEFENDANT’S DEMURRER AND MOTION TO STRIKE COMPLAINT
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Case Number: 25STCV38497 Hearing Date: June 26, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DONALD
J. PINNERE, an individual,

Plaintiff,

vs.

ASTORIA HEALTHCARE CENTER LLC dba Astoria Healthcare
Center; and Does 1 through 200, inclusive,

Defendants.

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CASE

NO.: 25STCV38497

[TENTATIVE] ORDER RE: DEFENDANT'S
DEMURRER AND MOTION TO STRIKE COMPLAINT

Dept. 733

8:30 a.m.

June 26, 2026

I.

INTRODUCTION

This action arises
from a fall incident that occurred upon Plaintiff Donald J. Pinnere's

("Plaintiff") admission to
Defendant Astoria Healthcare Center LLC dba Astoria Healthcare Center
("Defendant").

On December 30,
2025, Plaintiff filed a complaint against Defendant, alleging causes of action
for (1) Elder Abuse, (2) Negligence, and (3) Violation of Residents Rights.

On February 19,
2026, Defendant filed the instant demurrer and motion to strike.

On June 12, 2026,
Plaintiff filed an opposition.

On June 18, 2026,
Defendant filed a reply.

II.

LEGAL STANDARD

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “‘treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . .’” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.)

Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd.

(b).)¿ An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint.¿ (Code Civ. Proc., 431.10, subd. (b).)¿ The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice.¿ (Code Civ. Proc., § 437.)¿

III.

DISCUSSION

Defendant demurs to the first cause of action for Elder Abuse on the grounds that it fails to state facts sufficient to constitute a cause of action and/or is uncertain, ambiguous, and unintelligible.

a.

Elder Abuse

To state a cause of action for elder abuse and neglect, Plaintiff must allege “[p]hysical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering.” (Welf. & Inst. Code, § 15610.07, subd. (a)(1).) Acts which are prohibited under the Elder Abuse Act provisions of the Welfare and Institute Code “do not include acts of simple professional negligence, but refer to forms of abuse or neglect performed with some state of culpability greater than mere negligence.” (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 781 (Covenant Care).) To constitute abuse and neglect within the meaning of the Elder Abuse Act, thereby triggering the enhanced remedies available under the Act, Plaintiff “must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct,” with recklessness referring “to a subjective state of culpability greater than simple negligence, which has been described as a “deliberate disregard” of the “high degree of probability” that an injury will occur,” and “[o]ppression, fraud and malice [involving] intentional or conscious wrongdoing of a despicable or injurious nature.” (Sababin v. Superior Court (2006) 144 Cal.App.4th 81, 88-89, quotation marks omitted.)

As stated above, acts above mere

professional negligence must be alleged to invoke the provisions of the Elder Abuse Act. (Welf. & Inst.Code, § 15657.2 [elder abuse is distinct from professional negligence of health care provider]; see *Delaney v. Baker* (1999) 20 Cal.4th 23, 35 [it is clear that “the Elder Abuse Act’s goal was to provide heightened remedies for, as stated in the legislative history, ‘acts of egregious abuse’ against elder and dependent adults, while allowing acts of negligence in the rendition of medical services to elder and dependent adults to be governed by laws specifically applicable to such negligence”] (citation omitted); *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 405 (Carter) [“To recover the enhanced remedies available under the Elder Abuse Act from a health care provider, a plaintiff must prove more than simple or even gross negligence in the provider’s care or custody of the elder.”].) Furthermore, a cause of action for Elder Abuse must be pled with particularity. (See *Covenant Care*, supra, 32 Cal.4th at p. 790 [“statutory causes of action must be pleaded with particularity”].)

Here, the only relevant facts alleged are that in June 2025, Plaintiff was admitted to Defendant; upon admission, Plaintiff was deemed a fall risk; and that on July 15, 2025, Plaintiff suffered a fall while in Defendant’s care. (Compl., ¶¶ 12-14.) There are otherwise no specific facts alleged that would establish that Defendant “(1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness).” (Carter, supra, 198 Cal.App.4th at pp. 406-407 (citations omitted).) While Plaintiff alleges that Defendant “was reckless, oppressive, and malicious,” “knew that taking the necessary precautions to prevent him from incurring avoidable falls was critical to his health, well-being, and prognosis,” and “failed to adequately inform [Plaintiff’s] physician of the nature and extent of his needs and failed to carry out doctor’s orders adequately and completely for his treatment and failed to adequately and appropriately document [Plaintiff’s] plan of care,” the Court does not assume the truth of conclusory allegations. (Compl., ¶¶ 16-17; Carter, supra, 198 Cal.App.4th

at pp. 410 ["plaintiffs' "[u]se of such terminology [as fraudulently and recklessly] cannot cure [the] failure to point out exactly how or in what manner the [Defendant has] transgressed."] (citation omitted).)

Lastly, Plaintiff fails to allege facts establishing any causal link between the claimed neglect and Plaintiff's injury. (Id. at p. 407 ["the facts constituting the neglect and establishing the causal link between the neglect and the injury 'must be pleaded with particularity,' in accordance with the pleading rules governing statutory claims."] (citation omitted).)

The demurrer is
sustained in its entirety.

Motion to Strike

Given
that the Court is sustaining Defendant's demurrer, the motion to strike is
denied as moot.

IV.

CONCLUSION

Based on the foregoing, Defendant's
demurrer is SUSTAINED in its entirety with thirty (30) days leave to amend. Defendant's motion to strike is
DENIED as moot.

Dated this 26th
day of June 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court